121 S.W. 21st Street
Topeka, KS 66612

Kansas
Department of Transportation
District 1

Phone: 785-296-3881
Fax: 785-296-1162
kdot#publicinfo@ks.gov
http://www.ksdot.org

Calvin E. Reed, P.E., Secretary
Laura Kelly, Governor
Michael E. Rinehart, P.E., District Engineer

September 16, 2026

City of Atchison
1801 Main Street,
Atchison, KS 66002

Dear Sir/Madam:

Highway Permit 1-2025-1246
Route K-7
ATCHISON County

Attached is your approved copy of the above referenced Highway Permit granting permission to The City of Atchison plans to separate stormwater infrastructure from existing sewer lines in accordance with EPA regulations and the Clean Water Act. An existing storm inlet north of Highway 7 near 16th Street will be rerouted to a new stormwater outlet south of Highway 7. The current designs are 95% complete, and the alignment is not expected to change significantly.. This permit expires 9/16/2027.

Once you have downloaded your permit, please notify our Utilities Coordinator, "Kerry Bramhall" using our Kansas Utilities Permit System at least one working day prior to starting any work on the highway so that arrangements can be made for the necessary inspection.

When you commence the work authorized by this permit, it will signify that you agree to any and all changes, additions and/or stipulations made to the original request and attachments. Contractors performing the work will be advised of the requirement to ensure work conforms to this permit. The work performed on the KDOT right of way will be strictly in accordance with this approved permit. Deviation from this permit with attachments (unless approved by KDOT prior to construction) will be cause for non-acceptance of the work and remedial action.

When you have completed all work connected with this permit, please let them know so that the permit can be released.

Yours Truly,

Michael E. Rinehart, P.E.,
District Engineer

Angel Fitzgerald
District Coordinator

Charlotte Fitzgerald

Date: 9/16/2026 12:50 AM

Attachment

c: File
Dale Kirmer – via email
Kerry Bramhall – via email
Angel Fitzgerald – via email

Permit 1-2025-1246

Notifying the appropriate KDOT representative at least 1 day prior to starting work on the highway right of way is MANDATORY. Work encountered without prior notification will be shut down and right of way vacated.
***** Permit may be REVOKED. *****

KANSAS DEPARTMENT OF TRANSPORTATION
Bureau of Maintenance

HIGHWAY PERMIT
USE OF RIGHT OF WAY

Route K-7
Co. ATCHISON
City N/A

THIS AGREEMENT, made and entered into, between the Secretary of Transportation of the State of Kansas, referred to as "Secretary" and City of Atchison (Name of Firm or Individual) 913-367-5561 (Tel. No.)

1801 Main Street , Atchison KS 66002 (Address)

referred to as "Petitioner" and the City of, N/A (City Name or N/A), referred to as "City".

Secretary has jurisdiction over highway right-of-ways within the State Highway System of Kansas, and

Secretary (and City) believe it is in the interest of the Citizens of the State of Kansas to permit certain work or projects to be performed upon Highway right-of-ways, and

Petitioner requests permission and authority from Secretary (and City) to perform certain work, described as follows:

The City of Atchison plans to separate stormwater infrastructure from existing sewer lines in accordance with EPA regulations and the Clean Water Act. An existing storm inlet north of Highway 7 near 16th Street will be rerouted to a new stormwater outlet south of Highway 7. The current designs are 95% complete, and the alignment is not expected to change significantly.

Emergency Contact Andrew Campbell Emergency Phone 913-370-2288

Conditions:

__ Traffic Control Devices and Safety Vests will be Utilized on KDOT Right-of-Way.

__ All "New Installations" are Required to have a Permit issued.

__ Bore shall be a minimum depth of 5 ft. below crown grade and 3ft. below flow line of the ditch grade.

__ Petitioner will use recognized best practices for soil erosion control.

__ New

Point #	Label	Latitude	Longitude	Main Line	Mile Point	Offset
RWAT						
1		39.56147	-95.13976	003K0000700S0	208.57	186.77
2		39.56148	-95.14016	003K0000700S0	208.59	187.08
3		39.56101	-95.14015	003K0000700S0	208.59	17.84
4		39.56102	-95.14005	003K0000700S0	208.58	20.06
5		39.56089	-95.14004	003K0000700S0	208.58	26.22
6		39.56070	-95.14018	003K0000700S0	208.59	94.63
Details: crossing = "Crossing", relocate = "N", abandonment = "N", pipeMaterial = "Concrete", pipeDiameter = "36\"", jointType = "Gasketed", lengthOfInstallation = "60", depth = "67", installationMethod = "Open Trench						

Said work is located on public right-of-way in, upon or along State Highway Route K-7, Reference Point 208.57 (or City Connecting Link Route K-7 on N/A St. in Sec. TWP Range ATCHISON County, Miles (direction) from (Jct. or county line) and

Secretary has delegated full and complete authority to the District Engineers of the Kansas Department of Transportation (KDOT) to execute Highway Permit Agreements, referred to as "Permits," for and on Secretary's behalf.
In consideration of the permission granted by the Secretary (and City) to utilize Highway right-of-way(s) in the manner described above, the following terms and conditions are mutually agreed to by the Petitioner, the Secretary (and the City).
1.0 PLANS: Petitioner shall furnish two (2) sets of comprehensive plan sets or detailed drawings 11" x 17", and/or electronic pdf copy of the

proposed work. Sketches, cut sheets, and/or documentation may be submitted on 8 1/2" x 11".

1.1 Plans for utility installations must include a description of the size, type, and method of installation for the proposed Facilities to be located within highway right-of-ways, and adequate detailed drawings indicating the location of the proposed installation with respect to the traveled way of the highway, the right-of-way lines and, where applicable, the control of access lines,

1.2 An accurate "As Built" Construction Plan shall be provided for deviation from the approved Plan.

2.0 MATERIAL AND METHODS: All requests to perform work in, upon or along Highway right-of-ways must be approved by the District Engineer (and City). In Cities, Petitioner will obtain additional Permits, as required by City.

2.1 The Petitioner shall furnish all material, do all work and pay all costs for the work described on this Permit,

2.2 All utility installations shall comply with the conditions and applicable requirements of the KDOT Utility Accommodation Policy, current edition, which is incorporated by reference in its entirety (and City standards when they exceed those of KDOT).

2.3 Drainage structure requirements shall be determined by Petitioner, but requirements are subject to review and approval by the District Engineer (and City).

2.4 All materials and construction methods used on work within the limits of the right-of-way shall meet or exceed the requirements of the "Standard Specifications for State Road and Bridge Construction," current edition. The Standard Specifications are available at www.ksdot.org.

3.0 INITIATION AND COMPLETION OF WORK: Petitioner agrees to notify the District Engineer (and City) or their duly authorized KDOT representative Kansas Dept. of Transportation,+17854862142 Kerry.Bramhall@ks.gov before work is initiated and again when the work is completed.

3.1 An approved signed copy of this Permit shall be on the premises at the start and during the period any work is performed.

3.2 All-work, including right-of-way restoration, shall be completed within 365 calendar days of APPROVAL DATE, otherwise this Permit is rescinded. If work has not been started within the completion time, this Permit becomes null and void.

4.0 INSPECTION: Petitioner will be responsible for supervising construction to insure compliance with KDOT (and City) policies and standards.

5.0 ACCEPTANCE: KDOT will be responsible for acceptance of restored right-of-way.

6.0 RIGHT-OF-WAY: Except for authorized changes, Petitioner shall restore the right-of-way to a condition equal to or better than existed prior to approval of the work described on this Permit.

6.1 Any sod, shrubs or trees destroyed by this work shall be replaced as directed by the District Engineer (and City).

6.2 The right-of-way shall be kept free from parking, advertising signs or any other commercial activity.

7.0 OBSTRUCTION OF TRAFFIC: Petitioner shall ensure highway (and connecting link) traffic will be free of interference unless specifically provided for as a part of this Permit. All temporary traffic control devices and their installation and maintenance shall comply with the latest edition of the Manual on UniformTraffic Control Devices (MUTCD for streets and highways which has been adopted by the Secretary). Whenever the temporary Traffic Control Standards conflict with the MUTCD, the Standards shall govern. Workers shall wear approved safety vests according to 23 CFR Part 634, Worker Visibility.

8.0 MAINTENANCE: All utility installations shall be maintained or caused to be maintained by Petitioner.

9.0 PERMIT REVOCATION: In lieu of bond, Secretary may revoke the permit and remove any work performed. The Petitioner shall reimburse the Secretary for any cost incurred by Secretary to restore the right-of-way. The Secretary will not authorize any other highway permits until Petitioner has either reimbursed Secretary or restored the right-of-way.

10.1 LIABILITY: Petitioner shall indemnify and hold harmless Secretary from personal injury and property damage claims arising out of any act or omission of Petitioner. If Secretary defends a third party's claim, the Petitioner shall indemnify Secretary for personal injury damages, property damages and related expenses Secretary incurs arising out of Petitioner's act or omission. For purposes of this provision, the term Petitioner includes Petitioner's employees, agents, subcontractors (at any tier), suppliers (at any tier), successors, and assigns.

10.2 INSURANCE: Liability Insurance. Petitioner shall carry "General Liability" insurance under an occurrence policy that has a minimum combined single limit of $2,000,000 for personal injury and property damage and that contains the following coverage: Comprehensive Form, Premises-Operation, Underground Hazard, Products/Completed Operations Hazard, Contractual Insurance, Broad form Property Damage, Independent Contractors, and Personal Injury. Worker's Compensation: Petitioner shall carry "Worker's Compensation and Employer's Liability" insurance that complies with Kansas Statute. Automobile Liability: Petitioner shall carry "Automobile Liability" insurance under an occurrence policy that has a minimum combined single limit of $1,000,000.00 for personal injury and property damage and that contains the following coverage: Comprehensive Form, Owned, Hired, and Non-Owned.

10.3 "Certificate of Insurance". This permit shall not take effect unless Petitioner provides Secretary a "Certificates of Insurance" confirming Petitioner carries insurance in the amounts and type this section requires. Petitioner shall obtain insurance only from insurers on the approved Federal Treasury List and authorized by the Kansas Commissioner of Insurance. The "Certificates of Insurance" shall include a clause requiring the insurer to notify Secretary thirty (30) calendar days in advance of cancellation of the insurance contracts.

10.4 Petitioner shall maintain the insurance required in Section 10.1 until the District Engineer releases the Petitioner from any Permit obligation.

11.0 DAMAGE TO UTILITIES: KDOT shall not be liable for damage to any utility not installed in the location authorized by any permit or agreement issued pursuant to the Utility Accommodation Policy.

12.1 PIPELINE LIABILITY: For attachments to bridges or other structures and for roadway crossings of PIPELINES CARRYING PETROLEUM, HAZARDOUS AND/OR CORROSIVE PRODUCTS, Petitioner shall solely assume all risk and liability for accidents and damages that may occur to persons, property or natural resources by reason of the operation of the pipeline attached to said bridge, structure or crossing of roadway.

12.2 Petitioner shall maintain the insurance required in Section 9.0 for as long as the pipeline remains attached to the bridge or other structure or for as long as the pipeline crosses the roadway. The insurance contract shall cover claims for such length of time as the law permits such claims.

13.0 ENVIRONMENTAL LIABILITY AND INDEMNIFICATION: Petitioner shall comply with all applicable federal, state, and local statutes, regulations and ordinances relating to environmental protection, and health and safety in Petitioner's acts on, or occupation of, the Highway right-of-way(s). Petitioner assumes all risk and liability for, or resulting from, any environmental condition on, at, or leaving the Highway(s) caused by or arising out of Petitioner's, or its agents' or contractors' acts, omissions, or occupation, in whole or in part, of the Highway right-of-way(s). Petitioner shall hold harmless and indemnify the Secretary against all liability, cost, expense, and fines incurred by or levied against the Secretary under any federal, state or local environmental law, regulation, or ordinance resulting from Petitioner's breach of this paragraph or as a result of Petitioner's acts or occupation of the Highway right-of-way(s) pursuant to this Permit. For purpose of this provision, the term Petitioner includes Petitioner's employees, agents, subcontractors (at any tier), suppliers (at any tier), successors and assigns.

14.0 HIGHWAY IMPROVEMENTS AND/OR MAINTENANCE: If Secretary makes any alteration or improvement along or upon the highway right-of-way which is the subject of this Permit, Petitioner shall hold Secretary harmless for any and all damage or injury to Petitioner's Facilities, whether finished or unfinished, as well as damage or injury to Petitioner's equipment, materials, employees, agents or contractees. Petitioner shall conduct all work approved on this permit in such a manner as not to interfere with construction or other work being performed by the KDOT (or City) or its contractors in the vicinity of Petitioner's work or project.

14.1 Within a reasonable time after receiving written notice from Secretary that Petitioner's Facilities are in conflict with KDOT's new construction or major maintenance operations, Petitioner shall alter, change location or move their construction work or Facilities without cost or expense to the Secretary. If Petitioner fails to relocate their Facilities within a reasonable time, KDOT may move the Facilities. Except for Rural Water Districts meeting the requirements of K.S. A. 68-415(c), Petitioner shall reimburse KDOT for the costs of relocating the Facilities upon receipt of an itemized statement. (See, K.S.A. 68-415). Petitioner shall reimburse KDOT for any construction costs, claims or expenses KDOT incurs as a result of Petitioners failure to timely relocate the Facilities.

14.2 Written notice will not be required for KDOT's normal maintenance.

15.0 ABANDONED OR RETIRED IN PLACE: Petitioner shall notify Secretary when the Facilities will be abandoned or retired in place and shall submit a plan for abandonment or retirement in place to the District Engineer or designee for review and approval. Petitioner shall remove or abandon the Facilities in place in accordance with the approve plan. Petitioner shall pay all costs associated with removal of abandoned or retired in place upon highway right-of-way Facilities.

This Permit is hereby accepted and its provisions agreed to by the Parties.

Petitioner

Andrew Campbell (Street Superintendent)

Printed Name and Title

Signature

913-367-5561	913-367-3654	andrewc@cityofatchison.com	10/9/2025 8:27 AM
Phone Number	Cell/Mobile Number	Email	Date

Area Engineer

Kerry Bramhall (ENGINEERING TECHNICIAN SENIOR) sign for Area Engineer

Printed Name and Title

Signature

1/30/2026 11:42 AM

Date

SECRETARY OF TRANSPORTATION OF THE STATE OF KANSAS

Angel Fitzgerald (District Coordinator) sign for District Engineer

Printed Name and Title

Signature

9/16/2026 12:50 AM

Date